

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

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MARK A. THOMAS, JR.,

Plaintiff,

-against-

THE CITY OF NEW YORK, 247 BEDFORD
ASSOCIATES, LLC, REDSKY CAPITAL, LLC,
WATERBRIDGE CAPITAL LLC, OMNISCIENT
INVESTIGATIONS CORP. d/b/a OIC SECURITY, APPLE
INC., APPLE WILLIAMSBURG ELECTRONIC STORE,
POLICE DETECTIVE JOHNSON, JOHN DOES-Police
Officers as yet unidentified and JOHN DOES-Security
Guards as yet unidentified,

Defendants.

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Index #

Date of filing:

Plaintiff designates Kings
County as the place of trialBasis of the venue is Locus of
Occurrence**SUMMONS**Plaintiff resides at
181A Halsey Street
Brooklyn New York 11216

County of Kings

TO THE ABOVE NAMED DEFENDANT:

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance, on the Plaintiff's Attorney within 20 days after the service of this summons, exclusive of the day of service (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in the case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded herein.

Defendant's address:

THE CITY OF NEW YORK
100 Church Street
New York, New York 10007

247 BEDFORD ASSOCIATES, LLC
28 Liberty Street
New York, New York 10005

REDSKY CAPITAL, LLC
28 Liberty Street
New York, New York 10005

WATERBRIDGE CAPITAL LLC
111 Eighth Avenue
New York, New York 10011

Plaintiff's attorneys:

RUBENSTEIN & RYNECKI, ESQS.
26 Court Street, Suite 1200
Brooklyn, New York 11242
(718)522-1020

Defendant's address:

OMNISCIENT INVESTIGATIONS CORP.
d/b/a OIC SECURITY
587 Willi Hill Road
Swan Lake, New York 12783

APPLE INC.
c/o C T Corporation System
28 Liberty Street
New York, New York 10005

APPLE WILLIAMSBURG ELECTRONIC
STORE
247 Bedford Avenue
Brooklyn, New York 11211

POLICE DETECTIVE JOHNSON
c/o New York City Police Department- 77th
Precinct
127 Utica Avenue
Brooklyn, New York 11213

Dated: Brooklyn, New York
January 19, 2023

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS-----X
MARK A. THOMAS, JR.,

Index No.:

Plaintiff,

COMPLAINT

-against-

THE CITY OF NEW YORK, 247 BEDFORD
ASSOCIATES, LLC, REDSKY CAPITAL, LLC,
WATERBRIDGE CAPITAL LLC, OMNISCIENT
INVESTIGATIONS CORP. d/b/a OIC SECURITY, APPLE
INC., APPLE WILLIAMSBURG ELECTRONIC STORE,
POLICE DETECTIVE JOHNSON, JOHN DOES-Police
Officers as yet unidentified and JOHN DOES-Security
Guards as yet unidentified,

Defendants.

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Plaintiff, by his attorneys, RUBENSTEIN & RYNECKI, ESQS., complaining of the
defendants herein, upon information and belief, respectfully shows to this Court, and alleges as
follows:

**AS AND FOR A FIRST CAUSE OF ACTION FOR FALSE ACCUSATION
OF MISTAKEN IDENTITY AGAINST DEFENDANTS, 247 BEDFORD
ASSOCIATES, LLC, REDSKY CAPITAL, LLC, WATERBRIDGE CAPITAL LLC,
OMNISCIENT INVESTIGATIONS CORP. d/b/a OIC SECURITY, APPLE INC.,
APPLE WILLIAMSBURG ELECTRONIC STORE AND JOHN DOES-SECURITY
GUARDS AS YET UNIDENTIFIED ON BEHALF OF MARK A. THOMAS, JR.**

1. That at all times hereinafter mentioned, plaintiff was and still is a resident of the
County of Kings, City and State of New York.

2. That on February 18, 2022, and at all times herein mentioned, the defendant, 247
BEDFORD ASSOCIATES, LLC, was and is a domestic limited liability corporation duly organized
and existing under and by virtue of the laws of the State of New York.

3. That on February 18, 2022, and at all times herein mentioned, the defendant, 247
BEDFORD ASSOCIATES, LLC, was and is a business entity duly organized and existing under and
by virtue of the laws of the State of New York.

4. That on February 18, 2022, and at all times herein mentioned, the defendant, 247 BEDFORD ASSOCIATES, LLC, was and is a corporation and/or business entity duly licensed to transact business in the State of New York.

5. That on February 18, 2022, and at all times hereinafter mentioned, the defendant, 247 BEDFORD ASSOCIATES, LLC, conducted business and maintained offices within the State of New York.

6. That on February 18, 2022, and at all times hereinafter mentioned, the defendant, 247 BEDFORD ASSOCIATES, LLC, was and still is a domestic limited liability corporation, duly authorized to do business in the State of New York.

7. That on February 18, 2022, and at all times hereinafter mentioned, the defendant, 247 BEDFORD ASSOCIATES, LLC, maintained its principal place of business within the State of New York.

8. That on February 18, 2022, and at all times hereinafter mentioned, the defendant, 247 BEDFORD ASSOCIATES, LLC, committed a tortious act within the State of New York.

9. That on February 18, 2022, and at all times hereinafter mentioned, the defendant, 247 BEDFORD ASSOCIATES, LLC, regularly does, or solicits, business in the State of New York.

10. That on February 18, 2022, and at all times hereinafter mentioned, the defendant 247 BEDFORD ASSOCIATES, LLC, received substantial revenue from goods used or consumed, or services rendered, in the State of New York.

11. That on February 18, 2022, and at all times herein mentioned, the defendant, REDSKY CAPITAL, LLC, was and is a domestic limited liability corporation duly organized and existing under and by virtue of the laws of the State of New York.

12. That on February 18, 2022, and at all times herein mentioned, the defendant, REDSKY CAPITAL, LLC, was and is a business entity duly organized and existing under and by virtue of the laws of the State of New York.

13. That on February 18, 2022, and at all times herein mentioned, the defendant, REDSKY CAPITAL, LLC, was and is a corporation and/or business entity duly licensed to transact business in the State of New York.

14. That on February 18, 2022, and at all times hereinafter mentioned, the defendant, REDSKY CAPITAL, LLC., conducted business and maintained offices within the State of New York.

15. That on February 18, 2022, and at all times hereinafter mentioned, the defendant, REDSKY CAPITAL, LLC, was and still is a domestic limited liability corporation, duly authorized to do business in the State of New York.

16. That on February 18, 2022, and at all times hereinafter mentioned, the defendant, REDSKY CAPITAL, LLC, maintained its principal place of business within the State of New York.

17. That on February 18, 2022, and at all times hereinafter mentioned, the defendant, REDSKY CAPITAL, LLC, committed a tortious act within the State of New York.

18. That on February 18, 2022, and at all times hereinafter mentioned, the defendant, REDSKY CAPITAL, LLC, regularly does, or solicits, business in the State of New York.

19. That on February 18, 2022, and at all times hereinafter mentioned, the defendant, REDSKY CAPITAL, LLC, received substantial revenue from goods used, or consumed, or services rendered, in the State of New York.

20. That on February 18, 2022, and at all times herein mentioned, the defendant, WATERBRIDGE CAPITAL LLC, was and is a domestic limited liability corporation duly organized and existing under and by virtue of the laws of the State of New York.

21. That on February 18, 2022, and at all times herein mentioned, the defendant, WATERBRIDGE CAPITAL LLC, was and is a business entity duly organized and existing under and by virtue of the laws of the State of New York.

22. That on February 18, 2022, and at all times herein mentioned, the defendant, WATERBRIDGE CAPITAL LLC, was and is a corporation and/or business entity duly licensed to transact business in the State of New York.

23. That on February 18, 2022, and at all times hereinafter mentioned, the defendant, WATERBRIDGE CAPITAL LLC, conducted business and maintained offices within the State of New York.

24. That on February 18, 2022, and at all times hereinafter mentioned, the defendant, WATERBRIDGE CAPITAL LLC, was and still is a domestic limited liability corporation, duly authorized to do business in the State of New York.

25. That on February 18, 2022, and at all times hereinafter mentioned, the defendant, WATERBRIDGE CAPITAL LLC, maintained its principal place of business within the State of New York.

26. That on February 18, 2022, and at all times hereinafter mentioned, the defendant, WATERBRIDGE CAPITAL LLC, committed a tortious act within the State of New York.

27. That on February 18, 2022, and at all times hereinafter mentioned, the defendant, WATERBRIDGE CAPITAL LLC, regularly does, or solicits, business in the State of New York.

28. That on February 18, 2022, and at all times hereinafter mentioned, the defendant WATERBRIDGE CAPITAL LLC, received substantial revenue from goods used or consumed, or services rendered, in the State of New York.

29. That on February 18, 2022, and at all times herein mentioned, the defendant, OMNISCIENT INVESTIGATIONS CORP. d/b/a OIC SECURITY, was and is a domestic limited liability corporation duly organized and existing under and by virtue of the laws of the State of New York.

30. That on February 18, 2022, and at all times herein mentioned, the defendant, OMNISCIENT INVESTIGATIONS CORP. d/b/a OIC SECURITY, was and is a business entity duly organized and existing under and by virtue of the laws of the State of New York.

31. That on February 18, 2022, and at all times herein mentioned, defendant, OMNISCIENT INVESTIGATIONS CORP. d/b/a OIC SECURITY, was and is a corporation and/or business entity duly licensed to transact business in the State of New York.

32. That on February 18, 2022, and at all times hereinafter mentioned, the defendant, OMNISCIENT INVESTIGATIONS CORP. d/b/a OIC SECURITY, conducted business and maintained offices within the State of New York.

33. That on February 18, 2022, and at all times hereinafter mentioned, the defendant, OMNISCIENT INVESTIGATIONS CORP. d/b/a OIC SECURITY, was and still is a domestic limited liability corporation, duly authorized to do business in the State of New York.

34. That on February 18, 2022, and at all times hereinafter mentioned, the defendant, OMNISCIENT INVESTIGATIONS CORP. d/b/a OIC SECURITY, maintained its principal place of business within the State of New York.

35. That on February 18, 2022, and at all times hereinafter mentioned, the defendant, OMNISCIENT INVESTIGATIONS CORP. d/b/a OIC SECURITY, committed a tortious act within the State of New York.

36. That on February 18, 2022, and at all times hereinafter mentioned, the defendant, OMNISCIENT INVESTIGATIONS CORP. d/b/a OIC SECURITY, regularly does, or solicits, business in the State of New York.

37. That on February 18, 2022, and at all times hereinafter mentioned, the defendant, OMNISCIENT INVESTIGATIONS CORP. d/b/a OIC SECURITY, received substantial revenue from goods used, or consumed, or services rendered, in the State of New York.

38. That on February 18, 2022, and at all times herein mentioned, the defendant, APPLE INC., was and is a domestic limited liability corporation duly organized and existing under and by virtue of the laws of the State of New York.

39. That on February 18, 2022, and at all times herein mentioned, the defendant, APPLE INC., was and is a business entity duly organized and existing under and by virtue of the laws of the State of New York.

40. That on February 18, 2022, and at all times herein mentioned, the defendant, APPLE INC., was and is a corporation and/or business entity duly licensed to transact business in the State of New York.

41. That on February 18, 2022, and at all times hereinafter mentioned, the defendant, APPLE INC., conducted business and maintained offices within the State of New York.

42. That on February 18, 2022, and at all times hereinafter mentioned, the defendant, APPLE INC., was and still is a domestic limited liability corporation, duly authorized to do business in the State of New York.

43. That on February 18, 2022, and at all times hereinafter mentioned, the defendant, APPLE INC., maintained its principal place of business within the State of New York.

44. That on February 18, 2022, and at all times hereinafter mentioned, the defendant, APPLE INC., committed a tortious act within the State of New York.

45. That on February 18, 2022, and at all times hereinafter mentioned, the defendant, APPLE INC., regularly does, or solicits, business in the State of New York.

46. That on February 18, 2022, and at all times hereinafter mentioned, the defendant APPLE INC., received substantial revenue from goods used or consumed, or services rendered, in the State of New York.

47. That on February 18, 2022, and at all times herein mentioned, the defendant, APPLE WILLIAMSBURG ELECTRONIC STORE, was and is a domestic limited liability corporation duly organized and existing under and by virtue of the laws of the State of New York.

48. That on February 18, 2022, and at all times herein mentioned, the defendant, APPLE WILLIAMSBURG ELECTRONIC STORE, was and is a business entity duly organized and existing under and by virtue of the laws of the State of New York.

49. That on February 18, 2022, and at all times herein mentioned, the defendant, APPLE WILLIAMSBURG ELECTRONIC STORE, was and is a corporation and/or business entity duly licensed to transact business in the State of New York.

50. That on February 18, 2022, and at all times hereinafter mentioned, the defendant, APPLE WILLIAMSBURG ELECTRONIC STORE, conducted business and maintained offices within the State of New York.

51. That on February 18, 2022, and at all times hereinafter mentioned, the defendant, APPLE WILLIAMSBURG ELECTRONIC STORE, was and still is a domestic limited liability corporation, duly authorized to do business in the State of New York.

52. That on February 18, 2022, and at all times hereinafter mentioned, the defendant, APPLE WILLIAMSBURG ELECTRONIC STORE, maintained its principal place of business within the State of New York.

53. That on February 18, 2022, and at all times hereinafter mentioned, the defendant, APPLE WILLIAMSBURG ELECTRONIC STORE, committed a tortious act within the State of New York.

54. That on February 18, 2022, and at all times hereinafter mentioned, the defendant, APPLE WILLIAMSBURG ELECTRONIC STORE, regularly does, or solicits, business in the State of New York.

55. That on February 18, 2022, and at all times hereinafter mentioned, the defendant, APPLE WILLIAMSBURG ELECTRONIC STORE, received substantial revenue from goods used, or consumed, or services rendered, in the State of New York.

56. That on February 18, 2022, and at all times hereinafter mentioned, and upon information and belief, the defendant, 247 BEDFORD ASSOCIATES, LLC, owned the premises located at 247 Bedford Avenue, County of Kings, City and State of New York.

57. That on February 18, 2022, and at all times hereinafter mentioned, and upon information and belief, the defendant, REDSKY CAPITAL, LLC, owned the premises located at 247 Bedford Avenue, County of Kings, City and State of New York.

58. That on February 18, 2022, and at all times hereinafter mentioned, and upon information and belief, the defendant, WATERBRIDGE CAPITAL LLC, owned the premises located at 247 Bedford Avenue, County of Kings, City and State of New York.

59. That on February 18, 2022, and at all times hereinafter mentioned, and upon information and belief, the defendant, APPLE INC., owned the premises located at 247 Bedford Avenue, County of Kings, City and State of New York.

60. That on February 18, 2022, and at all times hereinafter mentioned, and upon information and belief, the defendant, APPLE WILLIAMSBURG ELECTRONIC STORE, owned the premises located at 247 Bedford Avenue, County of Kings, City and State of New York.

61. That on February 18, 2022, and at all times hereinafter mentioned, and upon information and belief, defendants, 247 BEDFORD ASSOCIATES, LLC, REDSKY CAPITAL, LLC, WATERBRIDGE CAPITAL LLC, APPLE INC. and APPLE WILLIAMSBURG ELECTRONIC STORE, jointly owned the premises located at 247 Bedford Avenue, County of Kings, City and State of New York.

62. That on February 18, 2022, and at all times hereinafter mentioned, and upon information and belief, the defendant, 247 BEDFORD ASSOCIATES, LLC, managed the aforesaid premises.

63. That on February 18, 2022, and at all times hereinafter mentioned, and upon information and belief, the defendant, REDSKY CAPITAL, LLC, managed the aforesaid premises.

64. That on February 18, 2022, and at all times hereinafter mentioned, and upon information and belief, the defendant, WATERBRIDGE CAPITAL LLC, managed the aforesaid premises.

65. That on February 18, 2022, and at all times hereinafter mentioned, and upon information and belief, the defendant, OMNISCIENT INVESTIGATIONS CORP. d/b/a OIC SECURITY, managed the aforesaid premises.

66. That on February 18, 2022, and at all times hereinafter mentioned, and upon information and belief, the defendant, APPLE INC., managed the aforesaid premises.

67. That on February 18, 2022, and at all times hereinafter mentioned, and upon information and belief, the defendant, APPLE WILLIAMSBURG ELECTRONIC STORE, managed the aforesaid premises.

68. That on February 18, 2022, and at all times hereinafter mentioned, and upon information and belief, defendants, 247 BEDFORD ASSOCIATES, LLC, REDSKY CAPITAL, LLC, WATERBRIDGE CAPITAL LLC, OMNISCIENT INVESTIGATIONS CORP. d/b/a OIC

SECURITY, APPLE INC. and APPLE WILLIAMSBURG ELECTRONIC STORE , jointly managed the aforesaid premises.

69. That on February 18, 2022, and at all times hereinafter mentioned, and upon information and belief, the defendant, 247 BEDFORD ASSOCIATES, LLC, maintained the aforesaid premises.

70. That on February 18, 2022, and at all times hereinafter mentioned, and upon information and belief, the defendant, REDSKY CAPITAL, LLC, , maintained the aforesaid premises.

71. That on February 18, 2022, and at all times hereinafter mentioned, and upon information and belief, the defendant, WATERBRIDGE CAPITAL LLC, maintained the aforesaid premises.

72. That on February 18, 2022, and at all times hereinafter mentioned, and upon information and belief, the defendant, OMNISCIENT INVESTIGATIONS CORP. d/b/a OIC SECURITY, maintained the aforesaid premises.

73. That on February 18, 2022, and at all times hereinafter mentioned, and upon information and belief, the defendant, APPLE INC., maintained the aforesaid premises.

74. That on February 18, 2022, and at all times hereinafter mentioned, and upon information and belief, the defendant, APPLE WILLIAMSBURG ELECTRONIC STORE, maintained the aforesaid premises.

75. That on February 18, 2022, and at all times hereinafter mentioned, and upon information and belief, defendants, 247 BEDFORD ASSOCIATES, LLC, REDSKY CAPITAL, LLC, WATERBRIDGE CAPITAL LLC, OMNISCIENT INVESTIGATIONS CORP. d/b/a OIC SECURITY, APPLE INC. and APPLE WILLIAMSBURG ELECTRONIC STORE , jointly maintained the aforesaid premises.

76. That on February 18, 2022, and at all times hereinafter mentioned, and upon information and belief, the defendant, 247 BEDFORD ASSOCIATES, LLC, operated the aforesaid premises.

77. That on February 18, 2022, and at all times hereinafter mentioned, and upon information and belief, the defendant, REDSKY CAPITAL, LLC, operated the aforesaid premises.

78. That on February 18, 2022, and at all times hereinafter mentioned, and upon information and belief, the defendant, WATERBRIDGE CAPITAL LLC, operated the aforesaid premises.

79. That on February 18, 2022, and at all times hereinafter mentioned, and upon information and belief, the defendant, OMNISCIENT INVESTIGATIONS CORP. d/b/a OIC SECURITY, operated the aforesaid premises.

80. That on February 18, 2022, and at all times hereinafter mentioned, and upon information and belief, the defendant, APPLE INC., operated the aforesaid premises.

81. That on February 18, 2022, and at all times hereinafter mentioned, and upon information and belief, the defendant, APPLE WILLIAMSBURG ELECTRONIC STORE, operated the aforesaid premises.

82. That on February 18, 2022, and at all times hereinafter mentioned, and upon information and belief, defendants, 247 BEDFORD ASSOCIATES, LLC, REDSKY CAPITAL LLC, WATERBRIDGE CAPITAL LLC, OMNISCIENT INVESTIGATIONS CORP. d/b/a OIC SECURITY, APPLE INC. and APPLE WILLIAMSBURG ELECTRONIC STORE, jointly operated the aforesaid premises.

83. That on February 18, 2022, and at all times hereinafter mentioned, and upon information and belief, the defendant, 247 BEDFORD ASSOCIATES, LLC, controlled the aforesaid premises.

84. That on February 18, 2022, and at all times hereinafter mentioned, and upon information and belief, the defendant, REDSKY CAPITAL, LLC, controlled the aforesaid premises.

85. That on February 18, 2022, and at all times hereinafter mentioned, and upon information and belief, the defendant, WATERBRIDGE CAPITAL LLC, controlled the aforesaid premises.

86. That on February 18, 2022, and at all times hereinafter mentioned, and upon information and belief, the defendant, OMNISCIENT INVESTIGATIONS CORP. d/b/a OIC SECURITY, controlled the aforesaid premises.

87. That on February 18, 2022, and at all times hereinafter mentioned, and upon information and belief, the defendant, APPLE INC., controlled the aforesaid premises.

88. That on February 18, 2022, and at all times hereinafter mentioned, and upon information and belief, the defendant, APPLE WILLIAMSBURG ELECTRONIC STORE, controlled the aforesaid premises.

89. That on February 18, 2022, and at all times hereinafter mentioned, and upon information and belief, defendants, 247 BEDFORD ASSOCIATES, LLC, REDSKY CAPITAL, LLC, WATERBRIDGE CAPITAL LLC, OMNISCIENT INVESTIGATIONS CORP. d/b/a OIC SECURITY, APPLE INC. and APPLE WILLIAMSBURG ELECTRONIC STORE jointly controlled the aforesaid premises.

90. That on February 18, 2022, and at all times hereinafter mentioned, and upon information and belief, the defendant, 247 BEDFORD ASSOCIATES, LLC, supervised the aforesaid premises.

91. That on February 18, 2022, and at all times hereinafter mentioned, and upon information and belief, the defendant, REDSKY CAPITAL, LLC, supervised the aforesaid premises.

92. That on February 18, 2022, and at all times hereinafter mentioned, and upon information and belief, the defendant, WATERBRIDGE CAPITAL LLC, supervised the aforesaid premises.

93. That on February 18, 2022, and at all times hereinafter mentioned, and upon information and belief, the defendant, OMNISCIENT INVESTIGATIONS CORP. d/b/a OIC SECURITY, supervised the aforesaid premises.

94. That on February 18, 2022, and at all times hereinafter mentioned, and upon information and belief, the defendant, APPLE INC., supervised the aforesaid premises.

95. That on February 18, 2022, and at all times hereinafter mentioned, and upon information and belief, the defendant, APPLE WILLIAMSBURG ELECTRONIC STORE, supervised the aforesaid premises.

96. That on February 18, 2022, and at all times hereinafter mentioned, and upon information and belief, defendants, 247 BEDFORD ASSOCIATES, LLC, REDSKY CAPITAL, LLC, WATERBRIDGE CAPITAL LLC, OMNISCIENT INVESTIGATIONS CORP. d/b/a OIC SECURITY, APPLE INC. and APPLE WILLIAMSBURG ELECTRONIC STORE, jointly supervised the aforesaid premises.

97. That on February 18, 2022, and at all times hereinafter mentioned, and upon information and belief, the defendant, 247 BEDFORD ASSOCIATES, LLC, inspected the aforesaid premises.

98. That on February 18, 2022, and at all times hereinafter mentioned, and upon information and belief, defendant, REDSKY CAPITAL, LLC, inspected the aforesaid premises.

99. That on February 18, 2022, and at all times hereinafter mentioned, and upon information and belief, the defendant, WATERBRIDGE CAPITAL LLC, inspected the aforesaid premises.

100. That on February 18, 2022, and at all times hereinafter mentioned, and upon information and belief, the defendant, OMNISCIENT INVESTIGATIONS CORP. d/b/a OIC SECURITY, inspected the aforesaid premises.

101. That on February 18, 2022, and at all times hereinafter mentioned, and upon information and belief, the defendant, APPLE INC., inspected the aforesaid premises.

102. That on February 18, 2022, and at all times hereinafter mentioned, and upon information and belief, the defendant, APPLE WILLIAMSBURG ELECTRONIC STORE, inspected the aforesaid premises.

103. That on February 18, 2022, and at all times hereinafter mentioned, and upon information and belief, defendants, 247 BEDFORD ASSOCIATES, LLC, REDSKY CAPITAL, LLC, WATERBRIDGE CAPITAL LLC, OMNISCIENT INVESTIGATIONS CORP. d/b/a OIC

SECURITY, APPLE INC. and APPLE WILLIAMSBURG ELECTRONIC STORE, jointly inspected the aforesaid premises.

104. That on February 18, 2022, and at all times hereinafter mentioned, and upon information and belief, the defendant, 247 BEDFORD ASSOCIATES, LLC, owned, managed, maintained, operated, controlled, supervised and inspected the aforesaid premises.

105. That on February 18, 2022, and at all times hereinafter mentioned, and upon information and belief, the defendant, REDSKY CAPITAL, LLC, owned, managed, maintained, operated, controlled, supervised and inspected the aforesaid premises.

106. That on February 18, 2022, and at all times hereinafter mentioned, and upon information and belief, the defendant, WATERBRIDGE CAPITAL LLC, owned, managed, maintained, operated, controlled, supervised and inspected the aforesaid premises.

107. That on February 18, 2022, and at all times hereinafter mentioned, and upon information and belief, the defendant, OMNISCIENT INVESTIGATIONS CORP. d/b/a OIC SECURITY, managed, maintained, operated, controlled, supervised and inspected the aforesaid premises.

108. That on February 18, 2022, and at all times hereinafter mentioned, and upon information and belief, the defendant, APPLE INC., owned, managed, maintained, operated, controlled, supervised and inspected the aforesaid premises.

109. That on February 18, 2022, and at all times hereinafter mentioned, and upon information and belief, the defendant, APPLE WILLIAMSBURG ELECTRONIC STORE, owned, managed, maintained, operated, controlled, supervised and inspected the aforesaid premises.

110. That on February 18, 2022, and at all times hereinafter mentioned, and upon information and belief, defendants, 247 BEDFORD ASSOCIATES, LLC, REDSKY CAPITAL, LLC, WATERBRIDGE CAPITAL LLC, OMNISCIENT INVESTIGATIONS CORP. d/b/a OIC SECURITY, APPLE INC. and APPLE WILLIAMSBURG ELECTRONIC STORE jointly managed, maintained, operated, controlled, supervised and inspected the aforesaid premises.

111. That on February 18, 2022 and at all times hereinafter mentioned, and upon information and belief, the defendant, 247 BEDFORD ASSOCIATES, LLC, operated a retail business selling various Apple products, electronics and computer hardware/software at the premises located at 247 Bedford Avenue, in the County of Kings, City and State of New York.

112. That on February 18, 2022 and at all times hereinafter mentioned, and upon information and belief, the defendant, REDSKY CAPITAL, LLC, , operated a retail business selling various Apple products, electronics and computer hardware/software at the aforesaid location.

113. That on February 18, 2022 and at all times hereinafter mentioned, and upon information and belief, the defendant, WATERBRIDGE CAPITAL LLC, operated a retail business selling various Apple products, electronics and computer hardware/software at the aforesaid location.

114. That on February 18, 2022 and at all times hereinafter mentioned, and upon information and belief, the defendant, APPLE INC., operated a retail business selling various Apple products, electronics and computer hardware/software at the aforesaid location.

115. That on February 18, 2022 and at all times hereinafter mentioned, and upon information and belief, the defendant, APPLE WILLIAMSBURG ELECTRONIC STORE, operated a retail business selling various Apple products, electronics and computer hardware/software at the aforesaid location.

116. That on February 18, 2022 and at all times hereinafter mentioned, and upon information and belief, defendant, 247 BEDFORD ASSOCIATES, LLC, operated a business inviting the public to enter at the aforesaid location.

117. That on February 18, 2022, and at all times hereinafter mentioned, and upon information and belief, the defendant, REDSKY CAPITAL, LLC, operated a business inviting the public to enter at the aforesaid location.

118. That on February 18, 2022, and at all times hereinafter mentioned, and upon information and belief, the defendant, WATERBRIDGE CAPITAL LLC, operated a business inviting the public to enter at the aforesaid location.

119. That on February 18, 2022, and at all times hereinafter mentioned, and upon information and belief, the defendant, APPLE INC., operated a business inviting the public to enter at the aforesaid location.

120. That on February 18, 2022, and at all times hereinafter mentioned, and upon information and belief, the defendant, APPLE WILLIAMSBURG ELECTRONIC STORE, operated a business inviting the public to enter at the aforesaid location.

121. That on February 18, 2022, and at all times hereinafter mentioned, and upon information and belief, the defendant, OMNISCIENT INVESTIGATIONS CORP. d/b/a OIC SECURITY, is a private investigator firm and/or industry within the business services sector that provides specialized security to high-end clientele.

122. Upon information and belief, prior to February 18, 2022, the defendant, OMNISCIENT INVESTIGATIONS CORP. d/b/a OIC SECURITY, entered into an agreement with the defendant, 247 BEDFORD ASSOCIATES, LLC, to provide security services at the premises located at 247 Bedford Avenue, in the County of Kings, City and State of New York.

123. Upon information and belief, prior to February 18, 2022, the defendant, OMNISCIENT INVESTIGATIONS CORP. d/b/a OIC SECURITY, entered into an contract with the defendant, 247 BEDFORD ASSOCIATES, LLC, wherein defendant, OMNISCIENT INVESTIGATIONS CORP. d/b/a OIC SECURITY, agreed to provide security services at the aforesaid premises.

124. Upon information and belief, on February 18, 2022, the agreement and/or contract between the defendants, OMNISCIENT INVESTIGATIONS CORP. d/b/a OIC SECURITY, and 247 BEDFORD ASSOCIATES, LLC, to provide security services at the aforesaid premises was in full force and effect.

125. Upon information and belief, prior to February 18, 2022, the defendant, OMNISCIENT INVESTIGATIONS CORP. d/b/a OIC SECURITY, entered into an agreement with the defendant, REDSKY CAPITAL, LLC, to provide security services at the premises located at 247 Bedford Avenue, in the County of Kings, City and State of New York.

126. Upon information and belief, prior to February 18, 2022, the defendant, OMNISCIENT INVESTIGATIONS CORP. d/b/a OIC SECURITY, entered into an contract with the defendant, REDSKY CAPITAL, LLC, wherein defendant, OMNISCIENT INVESTIGATIONS CORP. d/b/a OIC SECURITY, agreed to provide security services at the aforesaid premises.

127. Upon information and belief, on February 18, 2022, the agreement and/or contract between the defendants, OMNISCIENT INVESTIGATIONS CORP. d/b/a OIC SECURITY, and REDSKY CAPITAL, LLC, to provide security services at the aforesaid premises was in full force and effect.

128. Upon information and belief, prior to February 18, 2022, the defendant, OMNISCIENT INVESTIGATIONS CORP. d/b/a OIC SECURITY, entered into an agreement with the defendant, WATERBRIDGE CAPITAL LLC, to provide security services at the premises located at 247 Bedford Avenue, in the County of Kings, City and State of New York.

129. Upon information and belief, prior to February 18, 2022, the defendant, OMNISCIENT INVESTIGATIONS CORP. d/b/a OIC SECURITY, entered into an contract with the defendant, WATERBRIDGE CAPITAL LLC, wherein defendant, OMNISCIENT INVESTIGATIONS CORP. d/b/a OIC SECURITY, agreed to provide security services at the aforesaid premises.

130. Upon information and belief, on February 18, 2022, the agreement and/or contract between the defendants, OMNISCIENT INVESTIGATIONS CORP. d/b/a OIC SECURITY, and WATERBRIDGE CAPITAL LLC, to provide security services at the aforesaid premises was in full force and effect.

131. Upon information and belief, prior to February 18, 2022, the defendant, OMNISCIENT INVESTIGATIONS CORP. d/b/a OIC SECURITY, entered into an agreement with the defendant, APPLE INC., to provide security services at the premises located at 247 Bedford Avenue, in the County of Kings, City and State of New York.

132. Upon information and belief, prior to February 18, 2022, the defendant, OMNISCIENT INVESTIGATIONS CORP. d/b/a OIC SECURITY, entered into an contract with

the defendant, APPLE INC. wherein defendant, OMNISCIENT INVESTIGATIONS CORP. d/b/a OIC SECURITY, agreed to provide security services at the aforesaid premises.

133. Upon information and belief, on February 18, 2022, the agreement and/or contract between the defendants, OMNISCIENT INVESTIGATIONS CORP. d/b/a OIC SECURITY, and APPLE INC., to provide security services at the aforesaid premises was in full force and effect.

134. Upon information and belief, prior to February 18, 2022, the defendant, OMNISCIENT INVESTIGATIONS CORP. d/b/a OIC SECURITY, entered into an agreement with the defendant, APPLE WILLIAMSBURG ELECTRONIC STORE, to provide security services at the premises located at 247 Bedford Avenue, in the County of Kings, City and State of New York.

135. Upon information and belief, prior to February 18, 2022, the defendant, OMNISCIENT INVESTIGATIONS CORP. d/b/a OIC SECURITY, entered into an contract with the defendant, APPLE WILLIAMSBURG ELECTRONIC STORE, wherein defendant, OMNISCIENT INVESTIGATIONS CORP. d/b/a OIC SECURITY, agreed to provide security services at the aforesaid premises.

136. Upon information and belief, on February 18, 2022, the agreement and/or contract between the defendants, OMNISCIENT INVESTIGATIONS CORP. d/b/a OIC SECURITY, and APPLE WILLIAMSBURG ELECTRONIC STORE, to provide security services at the aforesaid premises was in full force and effect.

137. That on February 18, 2022 and at all times hereinafter mentioned, and upon information and belief, the defendant, OMNISCIENT INVESTIGATIONS CORP. d/b/a OIC SECURITY, employed the defendants, JOHN DOES, as security guards, agents, servants and/or employees to provide security services at the premises located at 247 Bedford Avenue, in the County of Kings, City and State of New York.

138. That on February 18, 2022, and at all times hereinafter mentioned and upon information and belief, defendants, JOHN DOES, were hired as security guards, agents, servants and/or employees by the defendant, 247 BEDFORD ASSOCIATES, LLC, to provide security services at the aforesaid location.

139. That on February 18, 2022, and at all times hereinafter mentioned and upon information and belief, defendants, JOHN DOES, were hired as security guards, agents, servants and/or employees by the defendant, REDSKY CAPITAL, LLC, to provide security services at the aforesaid location.

140. That on February 18, 2022, and at all times hereinafter mentioned and upon information and belief, defendants, JOHN DOES, were hired as security guards, agents, servants and/or employees by the defendant, WATERBRIDGE CAPITAL LLC, to provide security services at the aforesaid location.

141. That on February 18, 2022, and at all times hereinafter mentioned and upon information and belief, defendants, JOHN DOES, were hired as security guards, agents, servants and/or employees by the defendant, APPLE INC., to provide security services at the aforesaid location.

142. That on February 18, 2022, and at all times hereinafter mentioned and upon information and belief, defendants, JOHN DOES, were hired as security guards, agents, servants and/or employees by the defendant, APPLE WILLIAMSBURG ELECTRONIC STORE, to provide security services at the aforesaid location.

143. The plaintiff, MARK A. THOMAS, JR., was lawfully present inside the aforesaid premises owned by defendants.

144. The plaintiff, MARK A. THOMAS, JR., was an invitee of the defendants.

145. The plaintiff, MARK A. THOMAS, JR., was a consumer at the Apple Williamsburg Electronic Store, located at 247 Avenue, in the County of Kings, City and State of New York.

146. That on February 18, 2022, and at all times hereinafter mentioned, the plaintiff, MARK A. THOMAS, JR., was lawfully present inside the aforesaid premises with the knowledge, permission and consent of the defendants.

147. That on February 18, 2022, The plaintiff, MARK A. THOMAS, JR., picked up a pair of headphones from the Apple Williamsburg Electronic Store after placing his order online from their website.

148. That on February 18, 2022, as he was leaving the store, the plaintiff, Mark A. Thomas, Jr., was approached and was assaulted, battered and falsely arrested by the defendants, including but not limited to POLICE DETECTIVE JOHNSON, JOHN DOES-Police Officers as yet unidentified, acting as agents, servants and/or employee of the defendant, THE CITY OF NEW YORK, after being falsely accused of robbery by mistaken identity.

149. The assault sustained by the plaintiff consist of being grabbed, elbowed to the back, thrown through the doors, thrown down on the floor and being forcefully placed in handcuffs while inside the aforesaid premises.

150 That no negligence on the part of the plaintiff contributed to the occurrence alleged herein in any manner whatsoever.

151. That because of the above stated negligence, plaintiff was caused to sustain serious injuries and to have suffered pain, shock, mental anguish; that these injuries and their effects will be permanent; as a result of said injuries plaintiff was caused and will continue to be caused to incur expenses for medical care and attention; and plaintiff was and will continue to be rendered unable to perform plaintiff's normal activities and duties and has sustained a resultant loss therefrom.

152. This action falls within one or more of the exceptions set forth in CPLR§ 1602.

153. That as a result of the defendant's negligence as aforesaid, this plaintiff, MARK A. THOMAS, JR., sustained damages in an amount exceeding the jurisdictional limits of all the lower Courts.

**AS AND FOR A SECOND CAUSE OF ACTION FOR NEGLIGENCE
AGAINST DEFENDANTS, 247 BEDFORD ASSOCIATES, LLC,
REDSKY CAPITAL, LLC, WATERBRIDGE CAPITAL LLC, OMNISCIENT
INVESTIGATIONS CORP. d/b/a OIC SECURITY, APPLE INC.,
APPLE WILLIAMSBURG ELECTRONIC STORE AND JOHN DOES-SECURITY
GUARDS AS YET UNIDENTIFIED ON BEHALF OF MARK A. THOMAS, JR.**

154. The plaintiff repeats, reiterates and realleges each and every allegation contained in this complaint numbered "1" through "153" inclusive with the same force and effect as if set

forth more fully at length herein.

155. That the defendants, 247 BEDFORD ASSOCIATES, LLC, REDSKY CAPITAL, LLC, WATERBRIDGE CAPITAL LLC, OMNISCIENT INVESTIGATIONS CORP. d/b/a OIC SECURITY, APPLE INC. and APPLE WILLIAMSBURG ELECTRONIC STORE, including but not limited to JOHN DOES, acting as security guards agents, servants and/or employees, were negligent, reckless and careless in the false accusation of mistaken identity which resulted the plaintiff to be assaulted, battered and falsely arrested by the defendants POLICE DETECTIVE JOHNSON, JOHN DOES-Police Officers as yet unidentified, acting as agents, servants and/or employee of the defendant, THE CITY OF NEW YORK, who were hired to run a sting operation at the aforementioned location.

156. As the result of said negligence, the plaintiff became sick, sore, lame and disabled, received severe and serious injuries in and about diverse parts of the person and suffered great physical pain, distress, mental shock, mental anguish and psychological trauma and was otherwise injured.

157. That as a result of the defendants' negligence as aforesaid, this plaintiff, MARK A. THOMAS, JR., has sustained damages both compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Courts.

**AS AND FOR A THIRD CAUSE OF ACTION FOR NEGLIGENT
HIRING AND RETENTION AGAINST DEFENDANTS, 247 BEDFORD
ASSOCIATES, LLC, REDSKY CAPITAL, LLC, WATERBRIDGE CAPITAL LLC,
OMNISCIENT INVESTIGATIONS CORP. d/b/a OIC SECURITY, APPLE INC.,
APPLE WILLIAMSBURG ELECTRONIC STORE AND JOHN DOES-SECURITY
GUARDS AS YET UNIDENTIFIED ON BEHALF OF MARK A. THOMAS, JR.**

158. The plaintiff repeats, reiterates and realleges each and every allegation contained in this complaint numbered "1" through "157" inclusive with the same force and effect as if set forth more fully at length herein.

159. That the defendants, 247 BEDFORD ASSOCIATES, LLC, REDSKY CAPITAL, LLC, WATERBRIDGE CAPITAL LLC, OMNISCIENT INVESTIGATIONS CORP. d/b/a OIC SECURITY, APPLE INC. and APPLE WILLIAMSBURG ELECTRONIC STORE, did not exercise

reasonable care and diligence in the selection, engagement, employment and training of the defendants, JOHN DOES and were also negligent in the hiring and retention of said defendants who mistakenly accused the plaintiff of robbery.

160. By reason of the foregoing, the plaintiff, MARK A. THOMAS, JR., was damaged in an amount exceeding the jurisdictional limits of all lower Courts.

AS AND FOR A FOURTH CAUSE OF ACTION AGAINST DEFENDANTS, 247 BEDFORD ASSOCIATES, LLC, REDSKY CAPITAL, LLC, WATERBRIDGE CAPITAL LLC, OMNISCIENT INVESTIGATIONS CORP. d/b/a OIC SECURITY, APPLE INC., APPLE WILLIAMSBURG ELECTRONIC STORE AND JOHN DOES-SECURITY GUARDS AS YET UNIDENTIFIED ON BEHALF OF MARK A. THOMAS, JR. FOR PUNITIVE DAMAGES ON BEHALF OF MARK A. THOMAS, JR.

161. The plaintiff repeats, reiterates and realleges each and every allegation contained in this complaint numbered "1" through "160" inclusive with the same force and effect as if set forth more fully at length herein.

162. The actions of the defendants, 247 BEDFORD ASSOCIATES, LLC, REDSKY CAPITAL, LLC, WATERBRIDGE CAPITAL LLC, OMNISCIENT INVESTIGATIONS CORP. d/b/a OIC SECURITY, APPLE INC. and APPLE WILLIAMSBURG ELECTRONIC STORE, were malicious, willful and grossly negligent.

163. The defendants authorized, permitted and ratified the unlawful and negligent acts of their agents, servants and/or employees herein-before alleged.

164. By reason of the above actions of defendants, the plaintiff, MARK A. THOMAS, JR., was damaged in an amount exceeding the jurisdictional limits of all lower Courts.

AS AND FOR A FIFTH CAUSE OF ACTION AGAINST THE DEFENDANTS, THE CITY OF NEW YORK, POLICE DETECTIVE JOHNSON AND JOHN DOES-POLICE OFFICERS AS YET UNIDENTIFIED FOR ASSAULT AND BATTERY ON BEHALF OF MARK A. THOMAS, JR.

165. The plaintiff repeats, reiterates and realleges each and every allegation contained in this complaint numbered "1" through "164" inclusive with the same force and effect as if set forth more fully at length herein.

166. That all times hereinafter mentioned, the defendant, THE CITY OF NEW YORK, was and still is a municipal corporation, duly organized and existing pursuant to the laws of the State of New York.

167. That the defendant, THE CITY OF NEW YORK, maintains a police force known as the NEW YORK CITY POLICE DEPARTMENT.

168. That prior hereto on April 27, 2022, and within the time prescribed by law, a sworn Notice of Claim stating, among other things, the time when and place where the injuries and damages were sustained, together with plaintiff's demands for adjustment or payment thereof, was served and that thereafter THE CITY OF NEW YORK, refused or neglected for more than (30) days and up to the commencement of this action to make any adjustment or payment thereof, and that thereafter, and within the time provided by law, this action was commenced.

169. Pursuant to the General Municipal Law, the Statutory 50-H Hearing of the plaintiff was held on July 28, 2022.

170. That on February 18, 2022, and at all times hereinafter mentioned and upon information and belief, the defendant, THE CITY OF NEW YORK, employed POLICE DETECTIVE JOHNSON and JOHN DOES-Police Officers as yet unidentified, as police officers, agents, servants and/or employees.

171. That on February 18, 2022, and at all times hereinafter mentioned and upon information and belief, the plaintiff, MARK A. THOMAS, JR., was lawfully present at or about the premises known as Apple Williamsburg Electronic Store, located at 247 Bedford Avenue, in the County of Kings, City and State of New York.

172. That on February 18, 2022, and at all times hereinafter mentioned and upon information and belief, while at the aforementioned location, the plaintiff, MARK A. THOMAS, JR., a customer at the Apple Williamsburg Electronic Store, was there to pickup a pair of headphone that he purchased through their website.

173. As he was leaving the store, the plaintiff, MARK A. THOMAS, JR., was approached from behind and was assaulted and battered by the defendants, including but not limited to POLICE

DETECTIVE JOHNSON and JOHN DOES-Police Officers as yet unidentified, acting as agents, servants and/or employee of the defendant, THE CITY OF NEW YORK, after being falsely accused of robbery by mistaken identity.

174. The assault sustained by the plaintiff consist of being grabbed, elbowed to the back, thrown through the doors, thrown down on the floor and was being placed in handcuffs while inside the aforesaid premises.

175. The plaintiff was then take to Brooklyn Hospital for treatment of his injuries under the supervision of the defendants police officers and then was released on the same day.

176. That on February 18, 2022, and at all times hereinafter mentioned and upon information and belief, plaintiff, MARK A. THOMAS, JR., was assaulted and battered by defendants, JOHN DOES-Police Officers as yet unidentified, who were acting within the scope of their employment with the defendant, THE CITY OF NEW YORK, at the aforesaid location.

177. That on February 18, 2022, and at all times hereinafter mentioned and upon information and belief, the aforementioned assault and battery was performed knowingly intentionally and willfully.

178. That on February 18, 2022, and at all times hereinafter mentioned and upon information and belief, the defendants, POLICE DETECTIVE JOHNSON and JOHN DOES-Police Officers as yet unidentified, who committed the aforementioned assault and battery upon the plaintiff, MARK A. THOMAS, JR., were acting within the scope of their employment with the defendant, THE CITY OF NEW YORK.

179. That on February 18, 2022, and at all times hereinafter mentioned and upon information and belief, the assault and battery on the plaintiff was without probable cause and was not the result of an appropriate arrest.

180. By reason of said assault and battery the plaintiff was caused to suffer severe and serious injuries in and about diverse parts of the person, and suffered great pain, distress, mental shock, mental anguish and psychological trauma and was otherwise injured.

181. By the reason of the foregoing, the plaintiff, MARK A. THOMAS, JR., sustained damages in an amount exceeding the jurisdictional limits of all the lower Courts.

**AS AND FOR A SIXTH CAUSE OF ACTION AGAINST THE
DEFENDANTS, THE CITY OF NEW YORK, POLICE DETECTIVE
JOHNSON AND JOHN DOES-POLICE OFFICERS AS YET UNIDENTIFIED
FOR HIRING AND RETENTION ON BEHALF OF MARK A. THOMAS, JR.**

182. The plaintiff repeats, reiterates and realleges each and every allegation contained in this complaint numbered "1" through "181" inclusive with the same force and effect as if set forth more fully at length herein.

183. That the defendant, THE CITY OF NEW YORK, did not exercise reasonable care and diligence in the selection, engagement, employment and training of their police officers, agents, servants, and employees and were negligent in the hiring, training and retention of the defendants, POLICE DETECTIVE JOHNSON and JOHN DOES-Police Officers as yet unidentified, who assaulted, battered and violated the civil rights of the plaintiff, MARK A. THOMAS, JR., who was falsely accused of robbery during a sting operation at the Apple Williamsburg Electronic Store, located at 247 Bedford Avenue, in the County of Kings, City and State of New York.

184. That the defendant, THE CITY OF NEW YORK, had prior knowledge of the inappropriate, unlawful, and improper conduct of the defendants, POLICE DETECTIVE JOHNSON and JOHN DOES-Police Officers, and continued to employ them and allowed them to be in contact with the public at large.

185. By the reason of the foregoing, the plaintiff, MARK A. THOMAS, JR., sustained damages in an amount exceeding the jurisdictional limits of all the lower Courts.

**AS AND FOR A SEVENTH CAUSE OF ACTION AGAINST THE
DEFENDANTS, THE CITY OF NEW YORK, POLICE DETECTIVE
JOHNSON AND JOHN DOES-POLICE OFFICERS AS YET UNIDENTIFIED
FOR FALSE ARREST ON BEHALF OF MARK A. THOMAS, JR.**

186. The plaintiff repeats, reiterates and realleges each and every allegation contained

in this complaint numbered "1" through "185" inclusive with the same force and effect as if set forth more fully at length herein.

187. That on February 18, 2022, and at all times hereinafter mentioned and upon information and belief, defendants, POLICE DETECTIVE JOHNSON and JOHN DOES-Police Officers as yet unidentified, were working within the scope of their employment and authority with the defendant, THE CITY OF NEW YORK, when they arrested and confined the plaintiff, MARK A. THOMAS, JR.

188. That on February 18, 2022, and at all times hereinafter mentioned and upon information and belief, the arrest and confinement was without probable cause nor based on reasonable grounds and not founded upon an arrest warrant.

189. That as a result of the aforesaid false arrest and confinement, the plaintiff, MARK A. THOMAS, JR., sustained serious permanent personal injuries along with humiliation, shame, indignity, damage to reputation and credit and suffered emotional and physical distress, emotional distress and injuries.

190. By the reason of the foregoing, the plaintiff, MARK A. THOMAS, JR., sustained damages in an amount exceeding the jurisdictional limits of all the lower Courts.

**AS AND FOR AN EIGHTH CAUSE OF ACTION AGAINST THE
DEFENDANTS, THE CITY OF NEW YORK, POLICE DETECTIVE
JOHNSON AND JOHN DOES-POLICE OFFICERS AS YET UNIDENTIFIED
FOR INTENTIONAL AND NEGLIGENT INFLECTION OF
EMOTIONAL DISTRESS ON BEHALF OF MARK A. THOMAS, JR.**

191. The plaintiff repeats, reiterates and realleges each and every allegation contained in this complaint numbered "1" through "190" inclusive with the same force and effect as if set forth more fully at length herein.

192. That the defendant, THE CITY OF NEW YORK, including but not limited to POLICE DETECTIVE JOHNSON and JOHN DOES-Police Officers as yet unidentified, acted intentionally, recklessly and with utter disregard to the consequences of their actions and caused severe emotional distress to the plaintiff through their actions.

193. Said actions exceeded all reasonable bounds of decency, were outrageous and shocking and resulted in severe emotional distress to the plaintiff, MARK A. THOMAS, JR.

194. That as a result of said intentional and negligent acts, the plaintiff, MARK A. THOMAS, JR., become sick, sore, lame and disabled, received severe and serious injuries in and about diverse parts of his person and suffered great physical pain, distress, mental shock, mental anguish and psychological trauma and was otherwise injured.

195. By reason of the foregoing, the plaintiff, MARK A. THOMAS, JR., sustained damages in an amount exceeding the jurisdictional limits of all the lower Courts.

**AS AND FOR A NINTH CAUSE OF ACTION AGAINST THE
DEFENDANTS, THE CITY OF NEW YORK, POLICE DETECTIVE
JOHNSON AND JOHN DOES-POLICE OFFICERS AS YET UNIDENTIFIED
FOR CIVIL RIGHTS VIOLATION ON BEHALF OF MARK A. THOMAS, JR.**

196. The plaintiff repeats, reiterates and realleges each and every allegation contained in this complaint numbered "1" through "195" inclusive with the same force and effect as if set forth more fully at length herein.

197. The defendant, THE CITY OF NEW YORK, through policies, practices and customs, directly caused the constitutional violation suffered by plaintiff, MARK A. THOMAS, JR.

198. The defendant, THE CITY OF NEW YORK, through its police department, has had and still has hiring practices that it knows will lead to the hiring of the police officers, including but not limited to POLICE DETECTIVE JOHNSON and JOHN DOES-Police Officers as yet unidentified, lacking the intellectual capacity and moral fortitude to discharge their duties in accordance with the constitution and is indifferent to the consequences.

199. The defendant, THE CITY OF NEW YORK, through its police department, has *de facto quota* policy that encourages unlawful stops, unlawful searches, false arrests, the fabrication of evidence and perjury.

200. The defendant, THE CITY OF NEW YORK, at all relevant times, was, upon information and belief, aware that these individual defendants, including but not limited to POLICE DETECTIVE JOHNSON and JOHN DOES-Police Officers as yet unidentified, routinely commit

constitutional violations such as those at issue here and has failed to change its policies, practices and customs to stop this behavior.

201. The defendant, THE CITY OF NEW YORK, at all relevant times, was aware that these individual defendants, including but not limited to POLICE DETECTIVE JOHNSON and JOHN DOES-Police Officers as yet unidentified, are unfit officers who have previously committed the acts alleged herein and/or have a propensity for unconstitutional conduct.

202. As a direct and proximate result of this unlawful conduct, the plaintiff, MARK A. THOMAS, JR., sustained the damages hereinbefore alleged.

**AS AND FOR A TENTH CAUSE OF ACTION AGAINST THE
DEFENDANTS, THE CITY OF NEW YORK, POLICE DETECTIVE
JOHNSON AND JOHN DOES-POLICE OFFICERS AS YET UNIDENTIFIED
FOR PUNITIVE DAMAGES ON BEHALF OF MARK A. THOMAS, JR.**

203. The plaintiff repeats, reiterates and realleges each and every allegation contained in this complaint numbered "1" through "202" inclusive with the same force and effect as if set forth more fully at length herein.

204. The actions of the defendants herein-above alleged, were malicious, willful and grossly negligent.

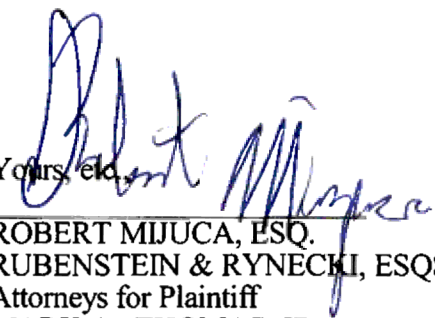
205. That the defendant, THE CITY OF NEW YORK, authorized, permitted and ratified the unlawful and negligent acts of their agents, servants and/or employees, including but not limited to POLICE DETECTIVE JOHNSON and JOHN DOES-Police Officers as yet unidentified, herein-above alleged.

206. By the reason of the foregoing, the plaintiff, MARK A. THOMAS, JR., sustained damages in an amount exceeding the jurisdictional limits of all the lower Courts.

WHEREFORE, plaintiff, MARK A. THOMAS, JR., demands judgment both compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Courts on the **First Cause of Action**; plaintiff, MARK A. THOMAS, JR., demands judgment both compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Courts on the **Second Cause**

of Action; plaintiff, MARK A. THOMAS, JR., demands judgment both compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Courts on the **Third** Cause of Action; plaintiff, plaintiff, MARK A. THOMAS, JR., demands judgment both compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Courts on the **Fourth** Cause of Action; plaintiff, MARK A. THOMAS, JR., demands judgment both compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Courts on the **Fifth** Cause of Action; plaintiff, MARK A. THOMAS, JR., demands judgment both compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Courts on the **Sixth** Cause of Action; plaintiff, MARK A. THOMAS, JR., demands judgment both compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Courts on the **Seventh** Cause of Action; plaintiff, MARK A. THOMAS, JR., demands judgment both compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Courts on the **Eighth** Cause of Action; plaintiff, MARK A. THOMAS, JR., demands judgment both compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Courts on the **Ninth** Cause of Action; plaintiff, MARK A. THOMAS, JR., demands judgment both compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Courts on the **Tenth** Cause of Action; together with attorneys' fees, and the costs and disbursements of this action.

DATED: Brooklyn, New York
January 19, 2023


Yours, etc.,
ROBERT MIJUCA, ESQ.
RUBENSTEIN & RYNECKI, ESQS.
Attorneys for Plaintiff
MARK A. THOMAS, JR.
26 Court Street Suite 1200
Brooklyn, New York 11242
(718) 522-1020
File No.: 22MT02-18

INDIVIDUAL VERIFICATION

STATE OF NEW YORK)

) SS:

COUNTY OF KINGS)

MARK A. THOMAS, JR., being duly sworn, deposes and says, that deponent is the plaintiff in the within action; that deponent has read the foregoing **COMPLAINT** and knows the contents hereof; that the same is true to deponent's own knowledge, except as to the matters therein stated to be alleged upon information and belief, and that as to those matters deponent believes them to be true.


MARK A. THOMAS, JR.

Sworn to before me this 31st
day of January 2023


NOTARY PUBLIC

MAGDA MARIN-COLON
Notary Public, State of New York
No. 01MA6158891
Qualified in Richmond County
Commission Expires 1-16-2027